

25STCV10080 25STCV10080

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-07

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Case Number: 25STCV10080 Hearing Date: August 7, 2026 Dept: 512

HEARING DATE: Fri., August 7, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: SMS Generators, LLC v. Perry, et al. COMPL. FILED: 04-03-25

CASE NUMBER: 25STCV10080 FAC FILED: 10-22-25

NOTICE: OK

PROCEEDINGS: PLAINTIFFS' MOTIONS TO COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION, AND FORM INTERROGATORIES, AND DEEM REQUESTS FOR ADMISSIONS ADMITTED

MOVING PARTY: Plaintiff SMS Generators, LLC

RESP. PARTY: None

MOTIONS TO COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION AND FORM INTERROGATORIES; MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED; REQUEST FOR SANCTIONS

(CCP §§ 2030.290; 2031.300; 2033.280)

TENTATIVE RULING:

Plaintiff SMS Generators, LLC's unopposed Motion to Compel Responses to Form Interrogatories, Motion to Deem the Truth of Matters Specified in Requests for Admission, and Motion to Compel Responses to Requests for Production of Documents to Defendant Nikolas Perry are GRANTED.

Defendant Nikolas Perry is to provide code-compliant and verified responses to the first set of FROGs and RPDs within 30 days of this order.

The Court orders that the truth of the matters specified in the RFAs is deemed admitted.

Plaintiff's requests for sanctions as to all Motions against Nikolas Perry are GRANTED in the reduced total amount of \$1,380.00, payable to Plaintiff's counsel by Defendant within 30 days of this order.

Plaintiff's SMS Generators, LLC's unopposed Motion to Compel Responses to Form Interrogatories, Motion to Deem the Truth of Matters Specified in Requests for Admission, and Motion to Compel Responses to Requests for Production of Documents to Defendant Founderz, LLC are GRANTED.

Defendant Founderz, LLC is to provide code-compliant and verified responses to the first set of FROGs and RPDs within 30 days of this order.

The Court orders that the truth of the matters specified in the RFAs is deemed admitted.

Plaintiff's requests for sanctions as to all three Motions against Founderz, LLC are GRANTED in the reduced total amount of \$1,380.00, payable to Plaintiff's counsel by Defendant within 30 days of this order.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of August 5, 2026 ☐ Late ☒ None

REPLY: None filed as of August 5, 2026 ☐ Late ☒ None

ANALYSIS:

I. Background

On April 3, 2025, Plaintiff SMS Generators, LLC ("Plaintiff") filed a Complaint for Breach of Contract against Defendants Nickolas Perry and Founderz, LLC ("Defendants") and Does 1-10.

On October 22, 2025, Plaintiff filed a First Amended Complaint against Defendants and Does 1-10, alleging causes of action for Breach of Contract, Account Stated, Breach of Implied-in-Law Contract, and Conversion.

On November 10, 2025, Defendants filed an Answer.

On June 22, 2026, Plaintiff filed the instant Motions to Compel Responses to Form Interrogatories (“FROGs”), Motions to Deem the Truth of Matters Specified in Requests for Admission (“RFAs”), and Motions to Compel Responses to Requests for Production of Documents (“RPDs”) to Defendants Nikolas Perry and Founderz, LLC, respectively, (collectively, “the Motions”) and accompanying requests for sanctions.

On July 23, 2026, the Court reset the hearings on five of the Motions for August 6, 2026, and gave notice. (7/23/26 Orders.)

No Oppositions to the Motions have been filed.

II. Legal Standard & Discussion

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (c).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) “If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product...” (Code Civ. Proc., § 2033.280, subd. (a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7.” (Code Civ. Proc., § 2033.280, subd. (b).)

Interrogatories

Plaintiff contends Defendants failed to timely respond to the first set of FROGs on or by the statutory deadline.

As to the FROGs Motion against Perry, Plaintiff’s counsel served defense counsel with the FROGs by email on March 13, 2026. (FROGs Motion, Blut Decl., ¶ 2, Exh. 1.) Plaintiff’s counsel granted defense counsel multiple extensions to provide the requested discovery responses but did not receive any responses as of June 22, 2026; rather, Plaintiff’s counsel received an email from defense counsel stating defense counsel seeks to withdraw as counsel for Defendant. (FROGs Motion, Blut Decl., ¶¶ 3-4, Exhs. 2-4.)

As to the FROGs Motion against Founderz, LLC, Plaintiff’s counsel served defense counsel with the FROGs by email on March 13, 2026. (FROGs Motion, Blut Decl., ¶ 2, Exh. 1.) Plaintiff’s counsel granted defense counsel multiple extensions to provide the requested discovery responses but did not receive any responses as of June 22, 2026; rather, Plaintiff’s counsel received an email from defense counsel stating defense counsel seeks to withdraw as counsel for Defendant. (FROGs

Motion, Blot Decl., ¶¶ 3-4, Exhs. 2-4.)

Thus, Plaintiff is entitled to an order compelling Defendants to provide responses without objections to the FROGs.

Requests for Production

Plaintiff contends Defendants failed to timely respond to the first set of RPDs on or by the statutory deadline.

As to the RPDs Motion against Perry, Plaintiff's counsel served defense counsel with the RPDs by email on March 13, 2026. (RPDs Motion, Blot Decl., ¶ 2, Exh. 1.) Plaintiff's counsel granted defense counsel multiple extensions to provide the requested discovery responses but did not receive any responses as of June 22, 2026; rather, Plaintiff's counsel received an email from defense counsel stating defense counsel seeks to withdraw as counsel for Defendant. (RPDs Motion, Blot Decl., ¶¶ 3-4, Exhs. 2-4.)

As to the RPDs Motion against Founderz, LLC, Plaintiff's counsel served defense counsel with the RPDs by email on March 13, 2026. (RPDs Motion, Blot Decl., ¶ 2, Exh. 1.) Plaintiffs' counsel granted defense counsel multiple extensions to provide the requested discovery responses but did not receive any responses as of June 22, 2026; rather, Plaintiff's counsel received an email from defense counsel stating defense counsel seeks to withdraw as counsel for Defendant. (RPDs Motion, Blot Decl., ¶¶ 3-4, Exhs. 2-4.)

Thus, Plaintiff is entitled to an order compelling Defendants to provide responses without objections to the RPDs.

Requests for Admission

Plaintiff contends Defendants failed to timely respond to the first set of RFAs on or by the statutory deadline.

As to the RFAs Motion against Perry, Plaintiff's counsel served defense counsel with the RFAs by email on March 13, 2026. (RFAs Motion, Blot Decl., ¶ 2, Exh. 1.) Plaintiff's counsel granted defense counsel multiple extensions to provide the requested discovery responses but did not receive any responses as of June 22, 2026; rather, Plaintiff's counsel received an email from defense counsel stating defense counsel seeks to withdraw as counsel for Defendant. (RFAs Motion, Blot Decl., ¶¶ 3-4, Exhs. 2-4.)

As to the RFAs Motion against Founderz, LLC, Plaintiff's counsel served defense counsel with the RFAs by email on March 13, 2026. (RFAs Motion, Blot Decl., ¶ 2, Exh. 1.) Plaintiff's counsel granted defense counsel multiple extensions to provide the requested discovery responses but did not receive any responses as of June 22, 2026; rather, Plaintiff's counsel received an email from defense counsel stating defense counsel seeks to withdraw as counsel for Defendant. (RFAs Motion, Blot Decl., ¶¶ 3-4, Exhs. 2-4.)

Thus, Plaintiff is entitled to an order deeming the RFAs admitted as to both Perry and Founderz, LLC.

Sanctions

Sanctions are mandatory against the party, the attorney, or both whose failure to serve a timely response to the request necessitated the motion to compel responses. (See Code Civ. Proc., §§ 2030.290(c), 2031.300(c), 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

"A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.)

Here, Defendants failed to serve timely responses to Plaintiff's FROGs, RPDs, and RFAs by the statutory deadline.

The Court finds Plaintiff's Notices of Motion comply with Code of Civil Procedure section 2023.040.

Plaintiff requests monetary sanctions of \$1,060.00 per Motion against Perry, reflecting \$60.00 in filing fees and \$1,000.00 incurred in hourly fees to prepare the Motion and attend the Motion hearing. (Notice of Motions; Motions, Blut Decls., ¶ 5.) Plaintiff's counsel states the hourly billing rate for the work on the Motions is \$500.00 per hour. (Motions, Blut Decls., ¶ 5.)

Given the straightforward and repetitive nature of the Motions, Plaintiff's requests for monetary sanctions against Perry are GRANTED in the reduced total amount for all three Motions of \$1,380.00, reflecting 3 hours incurred at \$400.00 per hour and filing fees of \$60.00 per motion.

Given the straightforward and repetitive nature of the Motions, Plaintiff's requests for monetary sanctions against Founderz, LLC are GRANTED in the reduced total amount for all three Motions of \$1,380.00, reflecting 3 hours incurred at \$400.00 per hour and filing fees of \$60.00 per motion.

III. Conclusion & Order

For the foregoing reasons, Plaintiff SMS Generators, LLC's unopposed Motion to Compel Responses to Form Interrogatories, Motion to Deem the Truth of Matters Specified in Requests for Admission, and Motion to Compel Responses to Requests for Production of Documents to Defendant Nikolas Perry are GRANTED.

Defendant Nikolas Perry is to provide code-compliant and verified responses to the first set of FROGs and RPDs within 30 days of this order.

The Court orders that the truth of the matters specified in the RFAs is deemed admitted.

Plaintiff's requests for sanctions as to all Motions against Nikolas Perry are GRANTED in the reduced total amount of \$1,380.00, payable to Plaintiff's counsel by Defendant within 30 days of this order.

Plaintiff's SMS Generators, LLC's unopposed Motion to Compel Responses to Form Interrogatories, Motion to Deem the Truth of Matters Specified in Requests for Admission, and Motion to Compel Responses to Requests for Production of Documents to Defendant Founderz, LLC are GRANTED.

Defendant Founderz, LLC is to provide code-compliant and verified responses to the first set of FROGs and RPDs within 30 days of this order.

The Court orders that the truth of the matters specified in the RFAs is deemed admitted.

Plaintiff's requests for sanctions as to all three Motions against Founderz, LLC are GRANTED in the reduced total amount of \$1,380.00, payable to Plaintiff's counsel by Defendant within 30 days of this order.

Moving party is ordered to give notice.